

August 9, 2024

Clerk of the Court

Washington Court of Appeals, Division 1

600 University Street

Seattle, WA 98101

Re: Zackariah Bennett, Appellant v. Melvina Manning, Respondent

Court of Appeals Case No.: 87007-6

King County Superior Court Case No.: 23-2-11352-7 SEA

Dear Clerk of the Court:

I am writing in response to the Court's request for an Order of Disposition related to the above-referenced appeal. Enclosed, please find the following documents:

1. Order Granting Defendant's Motion for Summary Judgment (dated July 3, 2024): This order reflects the trial court's final decision, which is the subject of this appeal.
2. Order Denying Plaintiff's Motion for Reconsideration (dated August 5, 2024): This order shows that the trial court denied my motion for reconsideration of the summary judgment without providing detailed reasoning.
3. Plaintiff's Motion for Reconsideration (submitted on July 11, 2024): This motion details the arguments and evidence I submitted to the trial court, which I believe were not adequately considered in the summary judgment ruling.
4. Memorandum in Support of Plaintiff's Motion for Reconsideration (submitted on July 24, 2024): This memorandum contains the legal arguments and supporting evidence that form the basis of my motion for reconsideration.

These documents are provided to fulfill the Court's request and to ensure that the appellate record includes all relevant orders and motions necessary for a comprehensive review of the case.

Please let me know if there is anything further required to complete my appeal submission. I appreciate the Court's attention to this matter.

Sincerely,


Zackariah Bennett

Enclosures:

1. Order Granting Defendant's Motion for Summary Judgment (July 3, 2024)
2. Order Denying Plaintiff's Motion for Reconsideration (August 5, 2024)
3. Plaintiff's Motion for Reconsideration (July 11, 2024):
4. Memorandum in Support of Plaintiff's Motion for Reconsideration (July 24, 2024):

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5 **SUPERIOR COURT OF WASHINGTON FOR KING COUNTY**

6 ZACKARIAH BENNETT,

7 Plaintiff,

NO. 23-2-11352-7 SEA

8 v.

ORDER GRANTING
DEFENDANT'S MOTION FOR
SUMMARY JUDGMENT

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10 MELVINA MANNING,

11 Defendant.

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14 THIS MATTER came before the Court on Defendant's Motion for Summary Judgment. The
15 Court has considered the record in this case, the materials submitted by the parties in regard to
16 this motion, as well as oral arguments from the parties, and the Court finds itself fully informed.
17 Now therefore,

18 IT IS HEREBY ORDERED, ADJUDGED, and DECREED as follows:

19 The Court finds that there are no genuine issues of material fact for trial in regard to the
20 issues presented and the Defendant is entitled to Summary Judgment as a matter of law.

21 Plaintiff's complaint alleges that the Defendant committed tortious interference with
22 parental rights, both criminally and civilly. As the Plaintiff is not an elected or appointed
23 prosecuting attorney, Plaintiff has no lawful basis or authority as an individual to bring a
24 criminal prosecutorial action on behalf of the State of Washington. Further, the facts are
25 undisputed that the Plaintiff does not have any legal parental rights to be interfered with, as these
26 rights were previously terminated by the Snohomish County Superior Court in 2013, thus
providing no basis for further civil action on these grounds. Any other issues presented in Mr.

Order Granting Defendant's Motion
for Summary Judgment

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4471 Tolt Ave. P. O. Box 1041
Carnation, Washington 98014
Phone: 425-333-4848 FAX: 425-333-4884

1 Bennett's complaint have been adjudicated previously in court or are additional criminal charges
2 the Plaintiff wishes to bring against the Defendant and are without merit.

3 Therefore, the Defendant's Motion for Summary Judgment is GRANTED and the
4 Plaintiff's case is dismissed.

5 **IT IS SO ORDERED.**

6 DONE IN OPEN COURT on

July 3, 2024

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11 Honorable Jaime Hawk

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13 Presented by:

14
15 /s/ Nancy A. Gass

49685

16 Nancy A. Gass

WSBA #

17 Attorney for Respondent

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Order Granting Defendant's Motion
for Summary Judgment

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**SUPERIOR COURT OF WASHINGTON
COUNTY OF KING**

ZACKARIAH BENNETT,
Plaintiff,

No. 23-2-11352-7 SEA

v

ORDER DENYING PLAINTIFF'S
MOTION FOR RECONSIDERATION

MELVINA MANNING,
Defendant.

I. ORDER

THIS MATTER came on before the Court as a "Motion for Reconsideration" filed by Plaintiff before The Honorable Jaime Hawk, regarding her Order Granting Defendant's Motion for Summary Judgment entered July 3, 2024.

The Court having considered the pleadings filed by the Plaintiff and being otherwise fully advised in the premises, NOW, THEREFORE,

THE MOTION TO RECONSIDER IS HEREBY DENIED.

DATED:

August 5, 2024

Jaime Hawk

The Hon. Jaime Hawk

ORDER DENYING MOTION
FOR RECONSIDERATION

p. 1 of 1

JUDGE JAIME HAWK
KING COUNTY SUPERIOR COURT

**IN THE SUPERIOR COURT OF
THE STATE OF WASHINGTON
COUNTY OF KING**

**ZACKARIAH BENNETT,
Plaintiff,
vs.
MELVINA MANNING,
Defendant.**

Case No.: 23-2-11352-7

MOTION FOR RECONSIDERATION

MOTION FOR RECONSIDERATION

TO: THE HONORABLE JUDGE HAWK

I. INTRODUCTION

Plaintiff, Zackariah Bennett, respectfully submits this Motion for Reconsideration pursuant to CR 59, seeking the Court to reconsider its decision granting Defendant's Motion for Summary Judgment and denying Plaintiff's Motion to Strike and Motion for Sanctions. Plaintiff asserts that the Court overlooked significant material facts, misapplied legal principles, and was misled by misrepresentations made by Defendant's counsel, Nancy Gass, during the summary judgment hearing.

II. LEGAL STANDARDS FOR RECONSIDERATION

Under CR 59, a court may reconsider its decision based on new evidence, errors of law, or other grounds that justify relief. Courts have broad discretion to reconsider prior rulings to correct errors and prevent injustice.

- **Legal Reference:** State v. Ellis, 178 Wn.2d 693, 310 P.3d 121 (2013) [Courts possess inherent authority to reconsider decisions to rectify errors and serve the interests of justice].

III. GROUNDS FOR RECONSIDERATION

A. Failure to Consider Plaintiff's Opposition:

1. Overlooked Arguments and Evidence:

- The Court's decision did not reflect consideration of Mr. Bennett's opposition to the summary judgment motion. His opposition detailed significant factual disputes and issues, particularly about misrepresentations, fraud, and spoliation of evidence.

- **Evidence Submitted:** Plaintiff's opposition included crucial elements such as the fraudulent editing of declarations, misrepresented facts, and spoliation of critical -

- **Legal Reference:** CR 56(c), which states summary judgment is appropriate only when there is no genuine issue as to any material fact.

- **Case Law:** Lambert v. Morehouse, 68 Wn. App. 500, 843 P.2d 1116 (1993) [Summary judgment is improper where reasonable minds could differ as to the facts and inferences].

B. Misrepresentations Made by Opposing Counsel

1. Misrepresentation of Alleged Prior Adjudication:

- Ms. Gass claimed all matters had been previously adjudicated. However, none of Mr. Bennett's claims have been litigated or addressed. The Defendant has failed to provide any evidence that the claims against her have been adjudicated.

2. Misrepresentation of Appeal Status:

- During the summary judgment hearing, Ms. Gass stated that the appeal of the 2022 DVPO was "denied." The reality is that the appeal was dismissed as moot and is currently pending the Supreme Court's decision on whether to review the case.

- **Legal Reference:** RCW 26.50 regarding appeals and protection orders, and RAP 12.7, which discusses the appellate court's authority to dismiss cases as moot.

- **Case Law:** Wessa v. Watermark Paddlesports, Inc., Case No. C06-5156 FDB (W.D. Wash. May. 22, 2006) [Acknowledging the relevance of pending appeals and the implications of dismissals as moot].

IV. PREJUDICIAL ERRORS AND NEWLY DISCOVERED EVIDENCE

A. Newly Discovered Evidence:

- Through discovery in this cause, Mr. Bennett was able to obtain a portion of the security video that Mrs. Manning had withheld in the DVPO cause, which is currently awaiting review and repeatedly referenced by Ms. Gass in this matter. Upon obtaining and analyzing this video, it was discovered to be a 93-second cell phone recording from over 30 minutes of original footage. This was after Mr. Bennett had requested that the original video be shown, declaring it would exonerate him of all claims against him. Confronted with this evidence, Ms. Gass provided proof that Mrs.

Manning allowed the rest of the footage to be auto-deleted while preserving only the 93-second clip. This new evidence significantly impacts the understanding of the facts.

- **Legal Reference:** *CR 60(b)(3)* provides for relief from a judgment or order based on fraud, misrepresentation, or other misconduct by an adverse party.

- **Case Law:** *In re Marriage of Leslie*, 112 Wn. 2d 612, 772 P.2d 1013 (1989) [Relief from judgment can be granted if new evidence is discovered that could not have been found with due diligence in time to move for a new trial].

B. Misapplication of Legal Standards & Incorrect Application of Statutes:

- The Court applied RCW 7.105.010(35)(a) instead of RCW 26.50.010, disregarding the effective date and applicability of the legislation.

- **Legal Reference:** *RCW 26.50.010* (Domestic Violence), *RCW 7.105.010* (Definitions related to protection orders), and the **Washington Session Laws of 2022 ch. 268**, which specify effective dates for new statutes.

- **Case Law:** *State v. Beaver*, 184 Wn.2d 321, 358 P.3d 385 (2015) [Application of statutes must respect delineated effective dates to avoid retroactive enforcement without clear legislative intent].

V. ARGUMENT

A. The Court's Evaluation of Credibility:

- The Court's judgment did not fully consider the contradictions and inconsistencies within the Defendant's submissions, objections made to false/misleading statements, and the evidence indicating potential fraudulent activities. Proper consideration of these factors is required for a fair adjudication.

B. Legal and Procedural Errors:

- The misapplication of legal standards, failure to address material facts, and the mishandling of discretion concerning objections, evidence, burden shifts, and contested facts evident at the hearing on summary judgement, merit reconsideration under CR 59.

VI. SPECIFIC CLAIMS UNADDRESSED

1. Defamation of Character:

- Claims regarding public allegations of domestic violence and harm to Plaintiff's reputation were not addressed by the Court.
- **Legal Reference:** *RCW 4.24.350* provides for a civil action for libel or slander.
- **Case Law:** *Mark v. Seattle Times*, 96 Wn.2d 473, 635 P.2d 1081 (1981) [Defamation claims require proving falsity, unprivileged communication, fault, and damages caused].

2. Intentional Infliction of Emotional Distress (IIED):

- Claims of emotional trauma caused by Defendant's actions and statements in the presence of Plaintiff's children were unaddressed.
- ****Legal Reference:**** Elements of IIED under Washington law include extreme and outrageous conduct, intentional or reckless infliction of emotional distress, and actual severe emotional distress.
- **Case Law:** *Kloepfel v. Bokor*, 149 Wn.2d 192, 66 P.3d 630 (2003) [IIED requires the defendant's conduct to be so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency].

3. Fraud:

- **On the Court:** Mrs. Manning made false, unsubstantiated claims of child abuse, abandonment, and drug use to improperly obtain an order of protection and retain the minor child [TB] in Washington State, in defiance of the natural parents' revocation of permission and demand for the child's return to Colorado.
- **On Mr. Bennett:** Using the improperly obtained order of protection, Mrs. Manning convinced Mr. Bennett's Colorado probation officer to deny his request for travel to Washington State to attend the Show Cause hearing set by Mrs. Manning for "emergency custody," effectively preventing him from physically appearing and

making it financially impossible for Mr. Bennett to obtain counsel in Colorado to fight probation revocation.

- **Voluntary Transfer of Parental Rights:** Five years after the second fraud, Mr. Bennett made a mistake that led to his imprisonment in Washington. Mrs. Manning convinced Mr. Bennett that his ex-wife had filed paperwork to take TB to Colorado and promised Mr. Bennett visitation and communication via a communication agreement provided by her attorney. As soon as Mr. Bennett signed the agreement, all communication with TB ceased. It was later discovered that there was an agreement between Mrs. Manning and the ex-wife that if Mr. Bennett was never allowed to see or speak to TB again, she wouldn't contest Mrs. Manning's custody. In 2015, Mrs. Manning offered reunification therapy but refused to authorize the counselor to speak with Mr. Bennett, effectively ending any communication.

- **Case Law:** *Adams v. King County*, 164 Wn.2d 640, 192 P.3d 891 (2008) [Fraud claims must specify a misrepresentation of material fact, knowledge of its falsity, intent to induce reliance, justifiable reliance by the plaintiff, and resulting damages].

4. Perjury:

- Claims of perjury based on knowingly false statements under oath might not have been explicitly ruled on by the Court.

- **Legal Reference:** *RCW 9A.72.020* defines perjury in the first degree.

- **Case Law:** *State v. Jessup*, 31 Wn. App. 304, 641 P.2d 1185 (1982) [Perjury claims necessitate clear evidence that false statements were made under oath].

5. Abuse of Process and Due Process Violations:

- Plaintiff's claims regarding the misuse of legal procedures might not have been discussed in sufficient detail. Mrs. Manning obtained the 2008 judgment by order of default, with Mr. Bennett never afforded an opportunity to speak on the matter. Mrs. Manning abused the legal system in Washington to obtain a restraining order on false pretenses, and used it to mislead Colorado Probation which prevented Mr. Bennett from attending the show cause hearing, from being able to be heard, and from regaining physical custody of TB in violation of due process and parental rights.

- **Legal Reference:** An action for abuse of process involves misuse of the process for an ulterior purpose.

- **Case Law:** *Sea-Pac Co. v. United Food & Comm. Workers*, 103 Wn.2d 800, 699 P.2d 217 (1985) [Abuse of process requires both an ulterior purpose and a willful act not proper in the regular conduct of the proceeding].

6. Custodial Interference:

- Claims of damage due to unlawful custodial interference prior to the termination of parental rights from 2008 to 2013 were overlooked. Mrs. Manning withheld Mr. Bennett's infant son unlawfully, in violation of the agreed upon visit, and after repeat demands for his return home. Instead of complying, Mrs. Manning sought and obtained a restraining order - on false pretense - seeking emergency custody of TB. Mrs. Manning requested that Mr. Bennett have no visitation with TB, claimed Mr. Bennett was threatening to remove TB from Washington, while simultaneously, in complete contradiction, claimed Mr. Bennett had abandoned TB to her, which was material in order for her to gain emergency custody according to RCW 26.27.231(1) and the UCCJEA. Jurisdiction should have been declined according to RCW 26.27.271(1).

- **Legal Reference:** *RCW 9A.40.060* outlines elements of custodial interference. *RCW 26.27.021(1)* defines abandoned. *RCW 26.27.231*, *RCW 26.27.241*, *RCW 26.27.271* outline temporary emergency jurisdiction, opportunity to be heard, and when jurisdiction should be declined by reason of conduct.

- **Case Law:** *State v. La Mere*, 119 Wn.2d 696, 836 P.2d 158 (1992) [Custodial interference involves taking, enticing, or keeping from lawful custody a child entitled to be with another person].

7. Tortious Interference with Parental Rights:

- Defendant withheld TB after Plaintiff requested his return, several months before obtaining a custody order. Plaintiff had intact parental rights from 2008-2013 during Mrs. Manning's prevention of access and communication with TB. Additionally, claims of abuse of legal process and fraud should be scrutinized based on historical misrepresentations and procedural manipulations by Mrs. Manning.

- **Legal Reference:** *RCW 26.09.260* regarding the modification of parenting plans or custody orders.

- **Case Law:** *Wyatt v. McDermott*, 283 Va. 685, 725 S.E.2d 555 (2012) [Tortious interference with parental rights includes actions aimed at disrupting the parent-child relationship].

- *Troxel v. Granville*, 530 U.S. 57 (2000) [Parents have a fundamental right to control the upbringing of their children, and a law that allows anyone to petition a court for child visitation rights over parental objections unconstitutionally infringes on this right. Courts may not use a freestanding "best interest of the child" standard to overturn parental rights].

VII. RELIEF REQUESTED

For the reasons set forth above, Plaintiff Zackariah Bennett respectfully requests that this Court:

1. Vacate the Order Granting Summary Judgment: Reconsider the decision to grant summary judgment in favor of the Defendant and deny the Defendant's Motion for Summary Judgment.

2. Grant the Plaintiff's Motion to Strike and for Sanctions: Recognize the misrepresentations and misconduct by the Defendant's counsel and impose appropriate sanctions.

3. Allow the Case to Proceed to Trial: Permit all unresolved claims to be fully litigated and adjudicated at trial.

Furthermore, Plaintiff requests any other relief that the Court deems just and proper under the circumstances.

VIII. CONCLUSION

In light of the material facts overlooked, the legal principles misapplied, and the misrepresentations made by Defendant's counsel, Plaintiff respectfully urges this Court to reconsider its prior rulings. The interests of justice and fair play demand a thorough reexamination of the evidence and arguments presented.

DATED this 6th day of July 2024.

Respectfully submitted,

Zackariah Bennett


IN THE SUPERIOR COURT OF
THE STATE OF WASHINGTON
COUNTY OF KING

ZACKARIAH BENNETT,
Plaintiff,
vs.
MELVINA MANNING,
Defendant.

Case No.: 23-2-11352-7

MEMORANDUM OF POINTS AND AUTHORITIES
IN SUPPORT OF MOTION FOR RECONSIDERATION

I. INTRODUCTION

Plaintiff, Zackariah Bennett, respectfully submits this Memorandum of Points and Authorities in support of his Motion for Reconsideration pursuant to CR 59. The Motion requests that the Court reconsider its decision granting Defendant's Motion for Summary Judgment due to overlooked material facts, misapplication of legal principles, and misrepresentations made by Defendant's counsel, Nancy Gass.

II. LEGAL STANDARDS FOR RECONSIDERATION

Under CR 59, a court may reconsider its decision based on new evidence, errors of law, or other grounds that justify relief. Courts have broad discretion to reconsider prior rulings to correct errors and prevent injustice.

- **Legal Authority:** *State v. Ellis,* 178 Wn.2d 693, 310 P.3d 121 (2013). Courts possess inherent authority to reconsider decisions to correct errors and ensure justice.

III. GROUNDS FOR RECONSIDERATION

A. Failure to Consider Plaintiff's Opposition:

1. Overlooked Arguments and Evidence:

- The Court's decision did not reflect consideration of Plaintiff's opposition to summary judgment, which detailed significant factual disputes including misrepresentations, fraud, and evidence spoliation. Notably, several claims involve elements that, if proven true, amount to child endangerment.

- **Legal Authority:** *CR 56(c)* states summary judgment is appropriate only when there is no genuine issue as to any material fact.

- **Case Law:** Lambert v. Morehouse, 68 Wn. App. 500, 843 P.2d 1116 (1993) [Summary judgment is improper where reasonable minds could differ as to the facts and inferences].

B. Misrepresentations Made by Opposing Counsel

1. Misrepresentation of Alleged Prior Adjudication:

- Defendant's counsel claimed that all matters had previously been adjudicated, despite the absence of any evidence to substantiate this claim.

2. Misrepresentation of Appeal Status:

- Defendant's counsel incorrectly stated that the appeal of the 2022 DVPO was "denied" when it was actually dismissed as moot and currently pending review by the Supreme Court.

- **Legal Authority:** *RCW 26.50* regarding appeals and protection orders, and *RAP 12.7,* which discusses the appellate court's authority to dismiss cases as moot.

- **Case Law:** *Wessa v. Watermark Paddlesports, Inc.,* Case No. C06-5156 FDB (W.D. Wash. May. 22, 2006). Acknowledging the implications of dismissals as moot in ongoing appeals.

IV. PREJUDICIAL ERRORS AND NEWLY DISCOVERED EVIDENCE

A. Newly Discovered Evidence:

- During discovery, Plaintiff obtained a portion of the security video that Mrs. Manning had withheld in the DVPO cause. Analysis revealed that the video was a 93-second cell phone recording from more than 30 minutes of original footage, with the rest allowed to be auto-deleted after Plaintiff specifically requested the video for exoneration.

- **Legal Authority:** *CR 60(b)(3)* provides relief from judgment based on fraud, misrepresentation, or other misconduct.

- **Case Law:** *In re Marriage of Leslie*, 112 Wn. 2d 612, 772 P.2d 1013 (1989) Relief from judgment can be granted if new evidence, that could not have been found with due diligence in time to move for a new trial, is discovered.

B. Misapplication of Legal Standards & Incorrect Application of Statutes:

- The Court applied RCW 7.105.010(35)(a) instead of RCW 26.50.010, disregarding the effective dates and applicability.

- **Legal Authority:** *RCW 26.50.010* (Domestic Violence), *RCW 7.105.010* (Definitions related to protection orders), and *Washington Session Laws of 2022 ch. 268,* specifying effective dates.

- **Case Law:** *State v. Beaver,* 184 Wn.2d 321, 358 P.3d 385 (2015). Application of statutes must respect delineated effective dates to avoid retroactive enforcement without clear legislative intent.

V. ARGUMENT

A. The Court's Evaluation of Credibility:

- The Court failed to fully consider contradictions within Defendant's submissions and evidence indicating potential fraud. Proper evaluation is necessary for fair adjudication.

B. Legal and Procedural Errors:

- The Court misapplied legal standards, failed to address material facts, and mishandled objections, burden shifts, and contested facts. Reconsideration is warranted under CR 59.

VI. SPECIFIC CLAIMS UNADDRESSED

A. Liberty Interest in Parent-Child Relationship

- Parents and children possess a constitutionally protected liberty interest in companionship and society with each other. This liberty interest is independently held by both parent and child.

- **Legal Authority:** *Smith v. City of Fontana,* 818 F.2d 1411, 1418 (9th Cir. 1987); *Kelson v. City of Springfield,* 767 F.2d 651, 654 (9th Cir. 1985). - The protected liberty interest is rooted in the Fourteenth Amendment, which states that "[n]o State shall . . . deprive any person of life, liberty, or property, without due process of law." - Interference with these liberty interests may give rise to a Fourteenth Amendment due process claim under 42 U.S.C. § 1983.

- **Case Law:** *In Re Matter of Amarreh,* A18-0198 (Minn. App. 2018). Substantial interference with the parent-child relationship can amount to child emotional endangerment, justifying custody modification.

B. Defamation of Character:

- Unaddressed claims regarding public allegations of domestic violence and harm to Plaintiff's reputation.

- Legal Authority: *RCW 4.24.350* provides for a civil action for libel or slander.

- Case Law: *Mark v. Seattle Times*, 96 Wn.2d 473, 635 P.2d 1081 (1981).

C. Intentional Infliction of Emotional Distress (IIED):

- Unaddressed claims of emotional trauma caused by Defendant's actions and statements.

- **Legal Authority:** Elements of IIED under Washington law include extreme and outrageous conduct, intentional or reckless infliction of emotional distress, and actual severe emotional distress.

- **Case Law:** *Kloepfel v. Bokor*, 149 Wn.2d 192, 66 P.3d 630 (2003).

D. Tortious Interference with Parental Rights:

- Recognized where wrongful interference with custody or visitation rights is sufficiently outrageous to justify a claim.

- **Legal Authority:** *RCW 26.09.260* regarding the modification of parenting plans or custody orders.

- **Case Law:** *Wyatt v. McDermott*, 283 Va. 685, 725 S.E.2d 555 (2012).
Troxel v. Granville, 530 U.S. 57 (2000) [Parents have a fundamental right to control the upbringing of their children, and a law that allows anyone to

petition a court for child visitation rights over parental objections unconstitutionally infringes on this right. Courts may not use a freestanding "best interest of the child" standard to overturn parental rights].

- **Statutory Authority:** The Parental Kidnapping Prevention Act, 28 U.S.C. 1738 (A), supports tort remedies available to parents when other parents or third parties interfere with custodial or visitation rights.

E. Fraud:

- **On the Court:** Mrs. Manning made false, unsubstantiated claims of child abuse, abandonment, and drug use to improperly obtain an order of protection and retain the minor child [TB] in Washington State, in defiance of the natural parents' revocation of permissi Using the improperly obtained order of protection, Mrs. Manning misled Mr. Bennett's probation officer to deny his request for travel to Washington and prevented his appearance at the hearing.

- **Voluntary Transfer of Parental Rights:** Manipulating Mr. Bennett into relinquishing parental rights under false pretenses.

- **Case Law:** *Adams v. King County,* 164 Wn.2d 640, 192 P.3d 891 (2008). - Restatement (Second) of Torts § 525: Defines liability for fraudulent misrepresentation inducing another to act.

F. Perjury:

- Claims of perjury based on knowingly false statements under oath might not have been explicitly ruled on by the Court.

- **Legal Authority:** *RCW 9A.72.020* defines perjury in the first degree.

- **Case Law:** *State v. Jessup*, 31 Wn. App. 304, 641 P.2d 1185 (1982) [Perjury claims necessitate clear evidence that false statements were made under oath].

G. Abuse of Process and Due Process Violations:

- Misuse of legal procedures to obtain a default judgment and restraining order under false pretenses
- **Legal Authority:** An action for abuse of process involves misuse of the process for an ulterior purpose.
- **Case Law:** *Sea-Pac Co. v. United Food & Comm. Workers*, 103 Wn.2d 800, 699 P.2d 217 (1985).

H. Custodial Interference:

- Claims of damage due to unlawful custodial interference prior to the termination of parental rights.
- **Legal Authority:** *RCW 9A.40.060* outlines elements of custodial interference. *RCW 26.27.021(1)* defines abandoned. *RCW 26.27.231*, *RCW 26.27.241*, *RCW 26.27.271* outlines temporary emergency jurisdiction, opportunity to be heard, and when jurisdiction should be declined by reason of conduct.
- **Case Law:** *State v. La Mere*, 119 Wn.2d 696, 836 P.2d 158 (1992).

VII. CONCLUSION

For the reasons set forth above, Plaintiff Zackariah Bennett respectfully requests that this Court:

- 1. Vacate the Order Granting Summary Judgment:** Reconsider and deny the Defendant's Motion for Summary Judgment.
- 2. Grant the Plaintiff's Motion to Strike and for Sanctions:** Impose appropriate sanctions for misrepresentations and misconduct.
- 3. Allow the Case to Proceed to Trial:** Permit all unresolved claims to be fully litigated and adjudicated at trial.

Furthermore, Plaintiff requests any other relief that the Court deems just and proper under the circumstances.

DATED this 24th day of July 2024.

Respectfully submitted,

Zackariah Bennett
